

been strongly advised not to delay the publication of the work, all that part containing the former Orders was at once sent to the press, thereby rendering it necessary to print the new Rules by themselves at the end ; but short notes have been appended, showing their connection with, or effect upon, the provisions of the former Orders.

A circumstance, which might possibly be supposed to render a work of this kind not altogether necessary, is, that there is an opinion in some quarters to this effect, that the Court of Chancery, as now established in Upper Canada, is not likely to remain a permanent institution—that, like many other creatures of Canadian Parliamentary birth, it may soon suffer annihilation at the hands of the parent, and that indeed such an event would be rather popular than otherwise. On this subject it would be presumption to offer an opinion here. The benefit, or otherwise, of this particular Court is a question of public economy, and not of law. Those whose duty it is to consider and decide upon such questions, will no doubt give it sufficient consideration. But one conclusion is inevitable, whether this or that Court be suffered to remain or be abolished, some tribunal, having power to try causes, such as those now brought before the Court of Chancery, must exist. There must be a Court, in which claimants can have redress in cases which the present common law tribunals cannot reach. Such cases will arise, and by some Court they must be decided. This is sufficient for our purpose ; and it is therefore unnecessary to enter into an argument as to which kind of Court would be most popular for the purpose, or which system would be most efficient. If, whatever changes in the jurisdictions take place, there must still be Equity administered by some Court, (and this seems undeniable) then it must be useful for the Profession to have kept clearly before them, from time to time, as alterations take place, the Rules by which the practice in the administration of Equity is governed.

When further important alterations happen to be made in the practice, the writer hopes that he, unless some one more fitted for it shall undertake the task, will keep the Profession supplied with the necessary supplementary publications.

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